

ROBBINS VS. ADVANCED CRISIS SOLUTIONS, INC.

Case Number: 24CV-0204925

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued January 29, 2025 to all parties and counsel for failure to timely file a Mandatory Settlement Conference Statement as required by CRC 3.1380(c) and Local Rule of Court 3.04. Plaintiff filed a stipulation and order requesting additional time to seek resolution of the case, which was granted by the Court on February 27, 2025. Further, Defendant filed a General Denial and response to the Order to Show Cause on February 27, 2025. In light of the filings submitted by both Plaintiff and Defendant, the Order to Show Cause is **DISCHARGED** as to all parties and counsel. The Court notes the future hearing of June 2, 2025 for Trial Setting Conference. **No appearance is necessary on today's calendar.**

WELLS FARGO BANK, N.A. VS. TOWE

Case Number: 24CVG-00197

Tentative Ruling on Motion for Summary Judgment: Plaintiff Wells Fargo Bank, N.A. moves for summary judgment on the Complaint filed against Defendant Kevin Towe on February 15, 2024.

A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. CCP § 437c(c). A plaintiff has met his burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff has met that burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1).

Plaintiff has presented evidence that Defendant opened a Wells Fargo Credit card, made charges to the card, and stopped paying after June 5, 2023. The Card Agreement and monthly billing statements from January of 2008 through December of 2023 were provided. Per the Court's August 5, 2024 Order, Defendant has been deemed to have admitted the following facts: That Plaintiff issued Defendant a Wells Fargo Credit Card, Defendant was to pay principal the amount charged plus finance charges, only Defendant or those authorized by Defendant used the card, Defendant received monthly statements, no transactions were disputed for any of the monthly billing statements, Defendant owes \$27,647.96, and the last payment was on June 5, 2023.

The Complaint alleges six causes of action:

1. Breach of Written Contract
2. Breach of Implied Contract
3. Common Counts for Money Lent
4. Common Counts for Money Paid
5. Common Counts for an Open Book Account
6. Common Counts for Account Stated.

Breach of Contract. A cause of action for breach of contract requires pleading of a contract, the plaintiff's performance or excuse for failure to perform, the defendant's breach, and damage to plaintiff resulting therefrom. *Miles vs. Deutsche Bank National Trust Company* (2015) 236 Cal. App. 4th 394. A cause of action for breach of implied contract has the same elements as does a cause of action for breach of contract except that the promise is not expressed in words but is implied from the promisor's conduct. *San Mateo Union High School District v. County of San Mateo* (2013) 213 Cal. App. 4th 218.

Money Lent and Paid. The elements of a Common Count for money lent are that the defendant is indebted in a certain sum for money loaned by plaintiff and the defendant has not repaid the money lent. *Pleasant vs. Samuels* (1896) 114 Cal. 34. The elements are identical for the Common Count of Money Paid. *Id.*